

**Judge Mosbarger – Law & Motion – Wednesday, July 29, 2026 @ 9:00 AM
TENTATIVE RULINGS**

1. 23CV03195 GARCIA, ALBERTO v. FIRESTORM WILDLAND FIRE SUPPRESSION, INC

EVENT: Defendant Firestorm Wildland Fire Suppression, Inc.'s Motion for Sanctions Against Plaintiff's Former Counsel Pursuant to Code of Civil Procedure Section 128.5

Defendant Firestorm Wildland Fire Suppression, Inc.'s Motion for Sanctions Against Plaintiff's Former Counsel Pursuant to Code of Civil Procedure Section 128.5 is denied, the Court finding that Defendant has failed to establish that Plaintiff or its counsel participated in actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay, to justify an award of sanctions pursuant to *Code of Civil Procedure* §128.5(a). The Court also denies Plaintiff's request for an Order to Show Cause re: Sanctions. Counsel for the Plaintiff shall prepare and submit a form of order within two weeks.

2. 23CV03395 VAUGHAN, DONALD E, II ET AL V. FITCH, JAMES MICHAEL ET AL

EVENT: Defendants' Motion for a Court Order for Future Depositions to be Taken Remotely

Defendant's Motion for a Court Order for Future Depositions to be Taken Remotely is GRANTED, the Court finding that Defendant has established good cause for the depositions of Sharese Butler, John Touchette, and Rhonda Riggins to be taken by contemporaneous videoconference rather than in person. The Court orders counsel to meet and confer on dates and times that are mutually convenient. Plaintiffs' request for sanctions is denied. Counsel for the Defendant shall prepare and submit a revised form of order consistent with this ruling within two weeks.

3. 25CV00675 KRULDER, WILLIAM D v. GENERAL MOTORS, LLC

EVENT: Defendant General Motors LLC's Motion to Dismiss for Discovery Violations; Request for Award of Costs (C.C.P. 871.26, SUBD. (J)(3))

Defendant General Motors LLC's ("Defendant" herein) Motion to Dismiss for Discovery Violations; Request for Award of Costs is unopposed and is granted. Plaintiff William D Krulder's ("Plaintiff" herein) action is dismissed without prejudice pursuant to *Code of Civil Procedure* §871.26(j)(3), and Plaintiff's counsel of record, Strategic Legal Practices, shall be responsible for costs awarded to Defendant. The Court will retain jurisdiction for that determination pursuant to *Code of Civil Procedure* §871.26(j)(3). The Court vacates the Mandatory Settlement Conference on December 2, 2026, the Trial Readiness Conference on April 15, 2027, and the Jury Trial on April 19, 2027. The Court will sign the form of order submitted by Defendant.